

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANDREA HENRY,

Plaintiff,

-against-

Plaintiff designates Bronx County
as the place of trial

Basis of venue is
county of occurrence

THE CITY OF NEW YORK,
YAWILMI GUZMAN and
JUSTIN VALENTIN,

SUMMONS

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 11, 2024

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o NYC Corp. Counsel, 100 Church St., New York, NY 10006

NYPD Officer Yawilmi Guzman: c/o NYPD 48th Pct., 450 Cross Bronx Expressway,
Bronx, NY 10457

NYPD Officer Justin Valentin: c/o NYPD 48th Pct., 450 Cross Bronx Expressway,
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
ANDREA HENRY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
YAWILMI GUZMAN and
JUSTIN VALENTIN,

Defendants.

----- X

Plaintiff, by her attorneys SIVIN, MILLER & ROCHE, LLP, as and for her
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was a resident of the County of Bronx, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
4. That at all times herein mentioned, defendant Yawilmi Guzman (hereinafter “Guzman”) was a police officer employed by the NYPD.
5. That at all times herein mentioned, Guzman was acting within the course and scope of his employment with the NYPD.
6. That at all times herein mentioned, Guzman was acting under color of state

law.

7. That at all times herein mentioned, defendant Justin Valentin (hereinafter “Valentin”) was a police officer employed by the NYPD.

8. That at all times herein mentioned, Valentin was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Valentin was acting under color of state law.

10. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a notice of claim and intention to sue was duly served upon and filed with defendants; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.

THE FACTS

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on or about August 9, 2023, plaintiff was operating a motor vehicle in the vicinity of Third Avenue and the Cross Bronx Expressway, Bronx, NY, when she was forcibly pulled over and stopped by Guzman and Valentin (hereinafter collectively “the officers”).

13. That prior pulling over and stopping plaintiff, the officers did not have probable cause or reasonable suspicion to believe that plaintiff had committed, was committing, or was about to commit a crime or traffic violation.

14. That after stopping plaintiff, the officers forcibly removed plaintiff from the vehicle against plaintiff's will and without her consent.

15. That in forcibly removing plaintiff from the vehicle, the officers caused plaintiff to sustain severe personal injuries, including a re-injury to her shoulder on which she had undergone surgery and for which she was actively engaged in receiving physical therapy.

16. That after forcibly removing plaintiff from the vehicle, the officers forcibly handcuffed and arrested plaintiff without a warrant and without probable cause or reasonable suspicion to believe that she had committed, was committing, or was about to commit a crime or traffic violation.

17. That after plaintiff was arrested, she was taken against her will by other NYPD officers, the identities of whom are unknown by plaintiff, to various locations, including but not limited to a police precinct.

18. That while in the police precinct, plaintiff suffered a seizure that was caused and/or contributed by the aforesaid actions of the officers.

19. That on or about August 10, 2023, Guzman and Valentin then initiated a criminal prosecution of plaintiff in which they caused plaintiff to be charged with various crimes of which she was innocent and of which the officers did not have probable cause to believe that plaintiff was guilty.

20. That the prosecution of plaintiff also was initiated without probable cause to believe that it would succeed, since the events that led to the prosecution were preceded by and a consequence of the initial illegal stop of plaintiff by the officers.

21. That in support of the prosecution, Guzman signed a Criminal Court Complaint in which he made allegations against plaintiff that were untrue and that he knew to be

untrue.

22. That in support of the prosecution, Guzman and Valentin also made statements to fellow officers and to the prosecutor that were untrue, including but not limited to statements that: a) plaintiff had committed at least one traffic infraction before being stopped by the officers; b) plaintiff refused to comply with directives before being forcibly removed from the vehicle; c) plaintiff kicked Guzman and Valentin; and d) plaintiff made certain specific insulting and derogatory statements toward the officers.

23. That the aforesaid false statements by the officers were material in nature and were of the type intended and likely to influence a judge or jury as to an assessment of plaintiff's guilt or innocence.

24. That the actions of the officers were intentional and malicious in nature.

25. That at all times referenced herein, Guzman and Valentin observed the illegal and unconstitutional conduct of their fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, and deliberately and intentionally failed and refused to do so.

26. That as a consequence of the aforementioned actions of the officers, plaintiff suffered a significant deprivation of her liberty, including but not limited to being required to appear in court to defend against the criminal charges brought against her.

27. That on or about November 20, 2023, all criminal charges against plaintiff were dismissed, and the criminal proceeding terminated favorably to plaintiff.

28. That as a further consequence of the actions of the officers, plaintiff suffered severe emotional and physical injuries, including but not limited to a severe aggravation and exacerbation of an injury to her left shoulder, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical expenses,

suffered and will continue to suffer lost earnings, and was otherwise damaged.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of Guzman and Valentin constituted an assault and battery upon plaintiff, for which Guzman and Valentin are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of Guzman and Valentin constituted a false arrest and a false imprisonment of plaintiff, for which Guzman and Valentin are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of Guzman and Valentin constituted a malicious prosecution of plaintiff, for which Guzman and Valentin are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST GUZMAN and VALENTIN
(42 USC § 1983 Claim Arising from Fourth & Fourteenth Amendment Violations)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforementioned actions of Guzman and Valentin in improperly stopping plaintiff's vehicle, forcibly seizing and removing plaintiff from the vehicle, falsely arresting and imprisoning plaintiff, and maliciously prosecuting plaintiff constituted illegal searches and seizures of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST GUZMAN and VALENTIN
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforesaid actions by Guzman and Valentin constituted a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(NYC Administrative Code § 8-802)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid actions by Defendants constituted unreasonable searches and seizures and uses of excessive force in violation of Plaintiff's rights pursuant to NYC

Administrative Code § 8-802, and entitle Plaintiff to recover monetary damages under NYC

Administrative Code § 8-803.

SEVENTH CAUSE OF ACTION AGAINST GUZMAN and VALENTIN
(42 USC § 1983 Claim Arising from Failure to Intervene)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforementioned actions of Guzman and Valentin in failing to intervene to prevent and/or stop the illegal conduct of their fellow officers constituted a violation of rights guaranteed to plaintiff under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and the NYC Administrative Code § 8-802, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983 and pursuant to NYC Administrative Code § 8-803.

43. That all of the causes of action herein fall within one or more of the exceptions of CPLR Article 16 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Guzman and Valentin, and attorney's fees against Guzman and Valentin pursuant to 42 U.S.C. § 1988, and attorney's fees against all defendants pursuant to NYC Administrative Code § 8-803, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
July 11, 2024

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 11, 2024

Edward Sivin

EDWARD SIVIN